

HOUSE BILL No. 1207

DIGEST OF INTRODUCED BILL

Citations Affected: IC 9-30-7-3.

Synopsis: Tests of a motor vehicle operator. Provides that a law enforcement officer shall offer a chemical test to any person who the officer has reason to believe operated a vehicle that was involved in a fatal accident.

Effective: July 1, 2026.

Olthoff

January 5, 2026, read first time and referred to Committee on Veterans Affairs and Public Safety.



Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

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A BILL FOR AN ACT to amend the Indiana Code concerning motor vehicles.

Be it enacted by the General Assembly of the State of Indiana:

1 SECTION 1. IC 9-30-7-3 IS AMENDED TO READ AS FOLLOWS
2 [EFFECTIVE JULY 1, 2026]: Sec. 3. (a) **This section does not apply**
3 **to a fatal accident.** A law enforcement officer shall offer a portable
4 breath test or chemical test to any person who the officer has reason to
5 believe operated a vehicle that was involved in ~~a fatal accident~~ or an
6 accident involving serious bodily injury. If:

7 (1) the results of a portable breath test indicate the presence of
8 alcohol;

9 (2) the results of a portable breath test do not indicate the
10 presence of alcohol but the law enforcement officer has probable
11 cause to believe the person is under the influence of a controlled
12 substance or another drug; or

13 (3) the person refuses to submit to a portable breath test;
14 the law enforcement officer shall offer a chemical test to the person.

15 **(b) A law enforcement officer shall offer a chemical test to any**
16 **person who the officer has reason to believe operated a vehicle that**
17 **was involved in a fatal accident.**



- 1 ~~(b)~~ **(c)** A law enforcement officer may offer a person more than one
2 (1) portable breath test or chemical test under this section. However, all
3 chemical tests must be administered within three (3) hours after the
4 fatal accident or the accident involving serious bodily injury.
5 ~~(c)~~ **(d)** It is not necessary for a law enforcement officer to offer a
6 portable breath test or chemical test to an unconscious person.

